

24NWCV00444 24NWCV00444

County: los-angeles

Division: Civil Law and Motion

Department: SED

Hearing date: 2026-07-27

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Case Number: 24NWCV00444 Hearing Date: July 27, 2026 Dept: SED

ERNEST MOJARRO V. CITY OF
SOUTH GATE, ET AL.

CASE NO.: 24NWCV00444

HEARING: 07/28/2026 @ 9:30 a.m.

#6

TENTATIVE ORDER

Defendant City of South Gate's
unopposed motions to compel are GRANTED.

Defendant City of South Gate's
request for sanctions is GRANTED.

Plaintiff Ernest Mojarro is
ordered to submit verified response without objections, within 30 days of this
order.

Sanctions are to be paid
within 30 days of notice of this order.

Moving party to give notice.

Defendant City of South Gate (the
City) moves for an order compelling Plaintiff Ernest Mojarro's (Plaintiff)

responses to the City's Set One of Requests for Production of Documents, Form Interrogatories, and Special Interrogatories. The City also seeks monetary sanctions.

Legal Standard

Requests for Production of Documents

A party must respond to requests

for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260(a).) If a party to whom requests for production of

documents is directed does not provide timely responses, the requesting party

may move for an order compelling response to the discovery. (Code Civ. Proc., § 2031.300(c).) The party also waives the right to make any

objections, including ones based on privilege or work-product protection. (Code Civ. Proc., § 2031.300(a).) There is no time limit for a motion to compel

responses to production of documents other than the cut-off on hearing

discovery motions 15 days before trial.

(Code Civ. Proc., §§ 2024.020(a), 2031.300.) No meet and confer efforts are required

before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko

Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148

Cal.App.4th 390, 411 (Sinaiko).)

Interrogatories

When a party fails to serve a

timely response to interrogatories, the party propounding the interrogatories

may move for an order compelling a response. (Code Civ. Proc., § 2030.290,

subd. (b).) A party who fails to provide

a timely response waives any objection, including one based on privilege or

work product. (Id., § 2030.290, subd. (a).)

Sanctions

If the motion to compel is

granted and the moving party properly asks for monetary sanctions, the court

"shall" order the party to whom the discovery was directed to pay the

propounding party's reasonable expenses, including attorney fees, in enforcing

discovery "unless it finds that the one subject to the sanction acted with

substantial justification or that other circumstances make the imposition of

the sanction unjust." (Code Civ. Proc.,

§ 2023.030(a).)

Meet and Confer

Meeting and conferring is not required for a motion to compel initial responses. (Code Civ. Proc., § 2031.300; Sinaiko, *supra*, 148 Cal.App.4th at 411.) However, the Court notes that the City attempted to meet and confer with Plaintiff prior to bringing this motion. (Jett Decls., ¶ 6, Ex. 3.)

Analysis

On October 23, 2024, the City served Plaintiff with its Set One of Requests for Production of Documents, Form Interrogatories, and Special Interrogatories. (Jett Decls., ¶ 2, Ex. 1.) After Plaintiff began proceeding in propria persona, the City re-served the same discovery requests on December 19, 2025. (Id. at ¶ 5, Ex. 2.) On February 3, 2026, the City attempted to meet and confer with Plaintiff regarding the overdue discovery responses. (Id. at ¶ 6.) To date, Plaintiff has not served any responses to the City's discovery requests. (Id. at ¶ 8.)

The Court finds that the City has established that it properly propounded discovery requests and that Plaintiff has failed to serve any responses.

Accordingly, the Court GRANTS the City's motions to compel.

Sanctions

The City also seeks monetary sanctions against Plaintiff in the total amount of \$4,860 (\$1,620 per motion), based on 1.5 hours to prepare each motion, 1.0 hour to review an opposition and prepare a reply, and 1.0 hour to appear at the hearing, at an hourly rate of \$360.00. (Jett Decls., ¶¶ 9–10.)

Because the Court grants the City's motions to compel, monetary sanctions are warranted. (Code Civ. Proc., § 2023.010, subd. (d); §§ 2030.290, subd. (c), 2031.300, subd. (c), & 2033.280, subd. (c), as applicable.) However, because no opposition was filed, the anticipated time for reviewing an opposition and preparing a reply was not reasonably incurred. The Court finds that 2.5 hours of attorney time per motion for preparing the motions and appearing at the hearing, at an hourly rate of \$360.00, is reasonable.

Accordingly, the Court GRANTS monetary sanctions in the reduced total amount of \$2,700.00.

Conclusion

Based on the foregoing, Defendant City of South Gate's unopposed motions to compel are GRANTED.

Defendant City of South Gate's request for sanctions is GRANTED in the reduced amount of \$2,700.00.

Plaintiff Ernest Mojarro is ordered to submit verified response without objections, within 30 days of this order.

Sanctions are to be paid within 30 days of notice of this order.